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25 April 1947

FLICK CASE --- REPORT NO. 6

DAILY TRIAL REPORT - TRIBUNAL NO. 4 - FLICK CASE

Evidence.

The Prosecution introduced 22 documents from Book V dealing with activity of the Berlin Office on slave labor and use and mistreatment in AKW, ATG, Busch and Doehlen.

Law and Procedure.

Dr. Pelckmann objected in the beginning of the morning session that he had not received his copy of the document book until 4 o'clock on the previous afternoon and that he wished to discuss some of the documents with his client, Terberger, before they were introduced. Upon assurance that they would not be reached until Monday he withdrew his objection. Thereupon Dr. Siemers, counsel for the defendant Weiss, made a similar objection. Prosecution suggested that court recess until the afternoon session in order that Dr. Siemers, who had just arrived in Nurnberg, could familiarize himself with the documents before presentation. The Tribunal thereupon recessed until 1:30.

Dr. Pelckmann raised a question about the translation of several German terms by the English equivalent "recruitment" was reference to the recruiting of slave labor. Upon the Prosecution's suggestion it was agreed that a mutually satisfactory translation would be worked out outside of court between the Prosecution and Defense. Dr. Siemers objected to the introduction of Prosecution Exhibit NI-4477 which is an exchange of letters between Buskuehl, and Weiss, on the ground that a report inclosed with the letter to Weiss on the cost of employment of Soviet prisoners of war was not being introduced and that the letters were incomplete without the report. It was pointed out that the reply of Weiss to the letter in question indicated that the inclosure had been sent back to buskuehl, that the correspondence had been taken from the files of the Berlin Office of the Flick Konzern and that the inclosure was not in the possession of the Prosecution. It was further pointed out that the letters in any event were admissible and that any arguments as to the meaning of the letters based upon what might or might not be included in the report were matters affecting the weight to be given to the letters rather than their admissibility. The court thereupon admitted the letters.

All documents containing initials of the defendants which were introduced were submitted to the Defense Counsel at the time of introduction and were submitted by Defense Counsel to the defendants themselves for inspection. The defendants acknowledged the initials on all but two exhibits. The prosecution withdrew any claim that the initials on these 2 exhibits were genuine. This procedure is not recommended as a general practice. It is however, very advantageous in a case such as this with a small number of defendants who are quite willing to acknowledge the authenticity of their own records.